**(DRAFT 12-09-20)**

# PROPOSED POLICY REVISIONS

# Information Item

**Rationale:** A district may rent, lease or permit the occasional use of surplus real property owned or lawfully held by the district, to any person, corporation, or government entity. The law requires the district to include provisions that permit the recapture of the surplus property, if needed, for school purposes. Recapture provisions do not apply if the land has close proximity to an international airport and the property has been:

- Permanently altered as to preclude the possible use of the property for a school; and
- Is heavily impacted by surrounding land uses so that a school would no longer be appropriate in the area.

The law was recently amended to also prohibit recapture if district property is leased or rented for affordable housing purposes. The district's policy is updated to include the recapture provisions and the exceptions.

## Rental or Lease of District Real Property

When district real property is not needed, the board has the authority to call for bids to rent or lease any surplus real property. A notice of the intent to rent or lease property will be published electronically or in a newspaper of general circulation in the district at least forty-five (45) days before the rental or lease takes effect, if the value of the annual rental or lease is Ten Thousand Dollars ($10,000.00) or more. The district may establish a minimum acceptable bid based upon the fair market value, provided that such minimum bid is non-discriminatory within classes of users.

Such property will be rented or leased for lawful purposes. The rental or lease will be in the best interests of the district and not interfere with the conduct of the district's educational program and related activities. The lease or rental agreement shall permit the recapture of leased or rented surplus property should such property be needed for future school purposes, unless proximity to an international airport precludes the possible or appropriate use of the property for a school, or the property is leased or rented for affordable housing purposes. Proceeds from rental or lease of district property which are in excess of the operational costs incurred for such rental or lease will be deposited in the capital projects fund or debt service fund.

The board of directors reserves the right to reject any and all bids.

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| Legal References: | RCW 28A.335.040 | RCW 28A.335.080 |
| | RCW 28A.335.050 | RCW 28A.335.090 |
| | RCW 28A.335.060 | RCW 28A.335.130 |
| | RCW 28A.335.070 | |

Adopted: May 8, 2018

Revised: _____

VPS